

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.



CHAPTER xcvi.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Carmarthen Kingston-upon-Hull Llandudno Melton Mowbray Morecambe Scarborough Southport Widnes and the Shoreham and Lancing Sea Defence District. [17th August 1921.] A.D. 1921.

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 8) Act 1921. Short title.

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SCHEDULE.

BOROUGH OF CARMARTHEN.

Carmarthen Order. *Provisional Order for partially repealing and altering the Local Act 6 Vict. c. XII. the Carmarthen Cattle Market Act 1853 and the Carmarthen Improvement Act 1898.*

WHEREAS the Borough of Carmarthen (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (hereinafter referred to as "the Corporation") are the local authority within the meaning of the Public Health Act 1875;

And whereas under the provisions of the Local Acts 6 Vict. cap. xii. the Carmarthen Cattle Market Act 1853 and the Carmarthen Improvement Act 1898 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed and all of which Acts are hereinafter collectively referred to as "the Local Acts") the Corporation provide certain markets fairs and slaughter-houses within the Borough and are authorised to demand and take certain stallages rents and tolls for the use thereof;

And whereas it is expedient that the Local Acts should be altered so as to make further provision with regard to the stallages rents and tolls to be demanded and taken by the Corporation for the use of their markets fairs and slaughter-houses and with regard to certain other matters hereinafter mentioned and the Corporation have accordingly made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Local Acts in the manner herein-after set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order (hereinafter referred to as "the commencement of this Order") the Local Acts shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

Construction of
Local Acts and
this Order.

1. The Local Acts and this Order shall be read together and shall be construed as if they formed one Act.

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2. The provisions of the Markets and Fairs Clauses Act 1847 except Section 50 thereof shall be incorporated with the Local Acts and this Order and the Local Acts and this Order shall together be deemed to be a special Act within the meaning of the said Markets and Fairs Clauses Act 1847.

Incorporation
of the Markets
and Fairs
Clauses Act
1847.

3.—(1) The following sections of the Local Acts shall so far as the same are still unrepealed be repealed namely sections 2 to 71 inclusive 74 to 98 inclusive and 103 to 127 inclusive of the Act of 1843 and Sections 5 to 20 inclusive Sections 22 to 33 inclusive Sections 39 to 42 inclusive and Sections 49 to 55 inclusive of the Act of 1853 and Section 67 of the Act of 1898.

Repeal of
parts of the
Local Acts.

(2) Nothing in this Article shall affect the operation of the Act of 1843 or the Act of 1853 in relation to any moneys borrowed under those Acts or either of them or in relation to any mortgages granted in respect of any of those moneys.

4. Notwithstanding anything contained in the Local Acts the Corporation may from time to time demand and take in respect of their markets fairs and slaughter-houses stallages rents and tolls not exceeding the stallages rents and tolls set forth in the First Schedule to this Order and those stallages rents and tolls shall be substituted for the stallages rents and tolls set forth in Schedule (F) of the Act of 1843 and Schedules (B) (C) (D) and (E) of the Act of 1853 and for the tolls mentioned in Section 43 of the Act of 1898.

Alteration of
tolls &c. in
respect of
markets fairs
and slaugh-
terhouses.

5. The Corporation may demand and take tolls not exceeding the tolls set forth in the Second Schedule to this Order in respect of charabancs motor cars and other vehicles left standing in the market-places or any of them (including the Fair Ground) whether on days on which markets are held or on other days.

Tolls for
charabancs
&c.

6. The Corporation shall have power with the sanction of the Minister of Health to alter from time to time the stallages rents and tolls mentioned in the Schedules to this Order and from and after the date upon which such altered stallages rents and tolls as sanctioned by the Minister of Health come into operation the corresponding stallages rents and tolls mentioned in the said Schedules shall cease to be demanded or taken.

Power to
alter stal-
lages rents
and tolls.

7. The Corporation may from time to time let on lease or otherwise for such consideration and upon such terms as the Corporation may think fit the market premises known as the Wool Room Provided that nothing herein shall authorise the letting or user of the said Wool Room for any purpose inconsistent with its present use in relation to the said markets or fairs.

Letting of
Wool Room.

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Additional
 borrowing
 powers for
 market
 undertaking.

Local Loans
 Act and cer-
 tain provi-
 sions of Pub-
 lic Health
 Act made
 applicable.

Period for
 repayment
 of borrowed
 moneys.

Mode of
 repayment.

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

8. The Corporation may with the sanction of the Minister of Health and subject to the provisions of this Order borrow upon the security of the revenue derived from the money to be received collected or recovered by them under the Local Acts for or in respect of the several markets fairs and slaughter-houses and upon the security of the borough fund and borough rate of the Borough or upon either of those securities such sums as may be necessary for any of the purposes of the Local Acts and this Order.

9. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

10. The moneys borrowed under Article 8 of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Minister of Health in each case determines and the period so determined and sanctioned is hereinafter referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

11.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

(2) Subject to the provisions of Article 12 of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund ;
 or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

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(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

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(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

12.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within

Increase reduction or discontinuance of payments to sinking fund.

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the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Minister of Health the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Minister may approve.

(4) If in the opinion of the Minister of Health the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the equal annual payments to the sinking fund until the Minister otherwise directs.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

Power to re-
borrow.

13.—(1) The Corporation shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid ; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed

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period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

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(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments ; or
- (b) by means of a sinking fund ; or
- (c) out of moneys derived from the sale of land ; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

14. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Minister of Health determine.

Application
 of borrowed
 moneys.

15.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than three hundred pounds in the whole.

16.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of the Local Acts or of this Order or in respect of any money raised thereunder and at any other

Return as to
 provision for
 repayment of
 debt.

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time when the Minister of Health may require such a return to be made transmit to the Minister a return in such form as may from time to time be prescribed by the Minister and if required by the Minister verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Minister may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(2) If it appears to the Minister of Health by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by any of the Local Acts or by this Order or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Minister may by order direct that the sum in his order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

Inquiries and
expenses.

17.—(1) The Minister of Health may direct any inquiries to be held by inspectors of the Minister of Health which he may deem necessary with reference to the purposes of the Local Acts and this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) Where the Minister causes any such inquiry as afore-said to be held the costs incurred by the Ministry in relation to that inquiry (including such reasonable sum as the Minister

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may determine for the services of any inspector or officer of the Ministry engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

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18. This Order may be cited as the Carmarthen Order Short title. 1921.

The SCHEDULES above referred to.

FIRST SCHEDULE.

Tables of Tolls Rents and Stallages.

Butchers.

	s.	d.
For every butcher's stall per week not less than 10 feet by 9	9	0
For every such stall of a less size per week	3	6

Tolls payable exclusive of Stallages and Hooks.

For every bull ox steer cow or heifer slaughtered without the limits of the Act of 1843 and brought to the Market	2	6
For every calf slaughtered without the limits of the Act of 1843 and brought to the market	1	0
For every sheep or lamb slaughtered without the limits of the Act of 1843 and brought to the market	1	0
For every hog or pig slaughtered without the limits of the Act of 1843 and brought to the market	1	0
For every other beast slaughtered without the limits of the Act of 1843 and brought to the market	2	0

Fishmongers.

For every fish stall per week	3	6
For every cart of fish	2	6
For every bag parcel or basket of fish cockles mussels or oysters	0	6
For every basket of shrimps or prawns	0	3

Poultry Butter Eggs and Cheese.

For every goose or turkey	0	2
For every fowl or duck	0	1
For every rabbit	0	0½
For butter not exceeding 6 lbs.	0	2

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	s.	d.
For butter exceeding 6 lbs. and not exceeding 12 lbs.	0	4
For butter exceeding 12 lbs. and not exceeding 24 lbs.	0	6
For every 12 lbs. or part thereof after 24 lbs.	0	3
For every 24 or less number of eggs	0	2
For eggs exceeding 24 and not exceeding 36	0	3
For eggs exceeding 36 and not exceeding 50	0	4
For eggs each additional 12 or less number after 50 ...	0	0½
For cheese every 12 lbs. or part thereof... ..	0	1
For every tub barrel or cask of butter brought to the market for sale	1	0

Fruit and Vegetables.

For every stall standing or place for laying down or exposing for sale fruit and vegetables only per week	2	0
For every such stall for every Wednesday and Saturday	1	0
For every such stall for every other day	0	6
For every cart of apples pears or other fruit	2	0
For every cart of potatoes turnips cabbages plants or any other vegetables	1	0
For every waggon of potatoes turnips cabbages plants or other vegetables or fruit	2	0
For every bag of potatoes peas beans turnips plants carrots apples plums nuts pears or other fruit or vegetables not exceeding 2 feet in length and 15 inches in breadth	0	1
For every sack of potatoes peas beans turnips carrots cabbage plants apples pears plums nuts or any other kind of fruit or vegetables	0	6
For every basket or hamper of potatoes peas beans carrots turnips cabbage plants apples pears plums nuts or other fruit or vegetables not being more than 2 feet in length 15 inches in breadth and 12 inches in depth	0	2
For every basket or hamper of ditto if a larger size ...	0	4
For every truck or wheelbarrow containing any of the above articles for sale	0	6

Wool Market.

Toll on Weighing.

For every stone of wool or less quantity	0	3
For every quantity above 1 stone and not exceeding 2 stone	0	5
For every quantity above 2 stone and not exceeding 4 stone	0	7
For every quantity above 3 stone and not exceeding 4 stone	0	9

And so on in proportion for any greater quantity.

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Weighing or Measuring.

	s.	d.	A.D. 1921.
For weighing every bull ox cow steer or heifer ...	0	6	<i>Carmarthen Order.</i>
For every pig	0	2	
For every sheep lamb or calf	0	2	
For every other beast	0	2	
For every flitch of bacon	0	2	
For every bullock's hide	0	2	
For every calf skin	0	1	
For every lot of fat or tallow	0	2	
For every hundred weight of cheese	0	6	
For every half hundred weight of cheese	0	3	
For every quarter hundred weight of cheese	0	1½	

And so on in proportion for a less quantity.

For every waggon cart or other carriage not exceeding twenty hundred weight	0	3
For each additional ton or part thereof	0	1

Shops &c.

For every stall or place for the purchase of sheep skins	2	0
For every enclosed covered shop for exposing to sale manufactured goods wares or merchandise per week	6	0
For every such enclosed covered shop every Wednesday or Saturday	3	0
For every such enclosed covered shop for every other day	2	0
For each and every superficial foot of every stall or open ground within the market place for exposing to sale any manufactured goods wares or merchandise for any market day	0	1
For every hawker or pedlar or any other persons standing or walking and exposing for sale any article whatever within the said market on any day by hand or otherwise and not occupying any ground in the market	1	0
Every hawker selling articles in or from a cart or waggon or any other carriage or stand not occupying any fixed position	5	0
For every superficial yard of ground in the said market whether covered or uncovered used or occupied by any person offering for sale or selling cabbages potatoes plants apple or other fruit trees shrubs or other flowers	0	3
For each and every superficial yard of ground of the said market used for exposing to sale any articles whatever not hereinbefore mentioned or enumerated	0	3

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Cattle Market.

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	s.	d.
For every bull ox cow and calf steer or heifer ...	0	6
For every calf except a sucking calf ...	0	3
For every horse gelding or mare ...	1	6
For every colt filly foal mule or ass ...	1	0
For every score of sheep or lambs ...	2	6

And so in proportion for a greater or less number.

For every pig or sow ...	0	3
For exhibiting every stallion or entire horse ...	1	0

Slaughter-houses.

For every bull ox cow steer or heifer ...	3	0
For every calf ...	1	0
For every hog or pig ...	2	0
For every sheep or lamb ...	1	0
For any other beast ...	2	0

Tolls to be taken for Weighing Tasting or Marking Cask Butter.

For every cask of butter tasted and marked or weighed by the inspector ...	1	0
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SECOND SCHEDULE.

Schedule of Tolls for Vehicles.

For each and every motor cycle and sidecar ...	1	6
For each and every motor cycle ...	1	0
For each and every charabanc ...	5	0
For each and every heavy motor locomotive including tractors ...	5	0
For each and every motor car ...	2	6
For each and every vehicle ...	1	6
For each and every hand cart ...	1	0

The word "tractor" means any mechanically propelled vehicle to which the Motor Car Acts do not apply including trailers.

Given under the Official Seal of the Minister of Health
this Seventh day of May One thousand nine hundred
and twenty-one.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

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CITY AND COUNTY OF KINGSTON-UPON-HULL. A.D. 1921.

*Provisional Order for partially repealing altering and
amending the Kingston-upon-Hull Corporation Act 1906.* *Kingston-
upon-Hull
Order.*

WHEREAS the City and County of Kingston-upon-Hull (hereinafter referred to as "the City") is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Kingston-upon-Hull Corporation Act 1906 (hereinafter referred to as "the Local Act") are in force in the City;

And whereas Section 41 of the Local Act makes provision for and with reference to the running of omnibuses by the Corporation;

And whereas by Section 68 of the Local Act provision is made with respect to the borrowing of moneys for the purposes of the Local Act;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in the exercise of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed altered and amended so that the following provisions shall have effect that is to say:—

1. For subsections (1) and (2) of Section 41 of the Local Act the following provisions shall be substituted:— *Power to run omnibuses.*

"(1) The Corporation may provide or maintain (but shall not manufacture) and may run omnibuses within the City."

"(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds."

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*Kingston-
upon-Hull
Order.*

Amendment of
subsection (3) of
s. 41 of Local
Act.

Sections 51
and 56 of
Tramways
Act 1870 to
apply to
omnibuses.

Fares and
charges.

Borrowing
powers.

2. In subsection (3) of Section 41 of the Local Act the words "or in upon or against any premises used in connection with their omnibus undertaking" shall be inserted after the words "belonging to them."

3. The following subsections shall be added to and form part of Section 41 of the Local Act:—

"(6) The provisions of Section 51 (Penalty on passengers practising frauds on the promoters) and Section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways."

"(7) Notwithstanding the provisions of subsection (4) hereof the Corporation shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue."

4.—(1) Subject to the provisions of this Article the Corporation may demand and take for passengers and parcels carried on the omnibuses fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport.

(2) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

(3) The Corporation may if they think fit carry on the omnibuses small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals.

(4) The fares and charges authorised by this Article shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares and charges appoint.

5. Section 68 of the Local Act shall be altered—

(a) By the omission of the following words and figure:—

"(2) For the purpose of providing motor omnibuses eight thousand four hundred pounds."

(b) By the addition thereto of the following subsection:—

"(3) The Corporation may borrow such moneys for the purposes of their omnibus undertaking as the Minister of Transport may sanction."

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6.—(1) (a) Before the Corporation commence to run omnibuses over any road or part of a road maintainable by a railway company it shall be determined by agreement between the Corporation and the railway company or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Order of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road and if so what sum of money (if any) per mile of road so to be adapted, altered or reconstructed shall be payable by the Corporation to the railway company by way of contribution towards the cost incurred in such adaptation alteration or reconstruction.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subdivision have been so agreed or determined the Corporation shall give notice in writing to the railway company as to whether they intend to run omnibuses over the road or part of a road in question.

(c) If the Corporation give notice in writing to the railway company that they intend to run omnibuses over the road or part of a road in question and if it shall have been agreed or determined that the Corporation are to make any payment to the railway company under the provisions of paragraph (a) of this subdivision the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road pay to the railway company such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the railway company on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subdivision the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road which is not executed within three years from the date on which the Corporation shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed.

(e) Except as provided by paragraph (c) of this subdivision not more than one payment or (in the case of a payment by instalments) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed.

A.D. 1921.

—
*Kingston-
upon-Hull
Order.*

Provisions as
to adaptation
of roads.

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

—
*Kingston-
upon-Hull
Order.*

(2) If any such adaptation alteration or reconstruction as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the railway company shall be deemed to be "undertakers" within the meaning of the said Act.

As to bridges
of railway
companies.

7. Nothing contained in this Order shall impose any obligation on or enlarge any obligation of any railway company to strengthen adapt alter or reconstruct any bridge maintainable by them.

Short title.

8. This Order may be cited as the Kingston-upon-Hull Order 1921.

Given under the Official Seal of the Minister of Health
this Tenth day of May One thousand nine hundred
and twenty-one.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF LLANDUDNO.

*Llandudno
Order.*

*Provisional Order for altering the Llandudno
Improvement Act 1854 and the Local Government Board's
Provisional Orders Confirmation (No. 5) Act 1899.*

WHEREAS the Urban District Council of Llandudno (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Llandudno (hereinafter referred to as "the District") and there are in force in the District the unrepealed provisions of the Llandudno Improvement Act 1854 (hereinafter referred to as "the Act of 1854") as altered by the Llandudno Order 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1899 (which Order and Act are hereinafter respectively referred to as "the Order of 1899" and "the Confirming Act of 1899") and by certain other Local Acts and by Provisional Orders of the Local Government Board which were duly confirmed by Parliament but which do not affect the subject-matter of this Order ;

And whereas by Sections 47 and 48 of the Act of 1854 and Schedules B D and E to that Act as altered by the Order of 1899 as confirmed as aforesaid provision is made as to the stallages rents and tolls that the Council may demand and take from any person occupying or using any room office stall shed

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

or stand in any market-place provided in pursuance of the Act of 1854 and in respect of the weighing or measuring the several articles or things therein specified and in respect of weighing waggons carts or carriages ;

A.D. 1921.
 —
Llandudno
Order.

And whereas by virtue of Section 53 of the Act of 1854 and Schedule C to that Act the Council are empowered to demand and receive from the persons using the slaughter-houses provided in pursuance of that Section the charges therein mentioned ;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1854 as altered as aforesaid in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

1. So much of the Confirming Act of 1899 as relates to Article III. of and the Schedule to the Order of 1899 shall be repealed.

Partial repeal
 of Confirming
 Act of 1899.

2. The unrepealed provisions of Schedule B and Schedules C D and E of the Act of 1854 shall be repealed and the Act of 1854 shall have effect as if Schedules B C D and E of this Order were substituted for those Schedules respectively.

Alteration of
 tolls &c. in
 respect of
 markets and
 slaughter-
 houses.

3. This Order may be cited as the Llandudno Order 1921.

Short title.

The SCHEDULES above referred to.

SCHEDULE B.

Butter.

s. d.

For every basket parcel or quantity of butter not exceeding twelve pounds weight per day ...	0	6
For each additional six pounds weight per day ...	0	3

Poultry and Pigs.

For poultry (including fowls chickens and ducks wild fowls pigeons and rabbits) (videlicet)—

Not exceeding three couple per day ...	0	3
For each additional three couple per day ...	0	2
For every turkey or goose per day ...	0	6
For every hog or pig per day ...	1	0
For every sucking pig per day ...	0	3

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.	Eggs.	s.	d.
<i>Llandudno</i> <i>Order.</i>	For every basket parcel or quantity of eggs under two dozen	0	2
	For every additional dozen	0	1
	For any quantity of flesh meat cheese bacon or pickled pork—		
	Where such quantity does not exceed in weight forty pounds avoirdupois ... for every day	0	6
	Where such quantity exceeds in weight forty pounds avoirdupois—		
	For the first forty pounds ... for every day	0	6
	For each additional twenty pounds or fraction of twenty pounds ... for every day	0	3
	For any quantity of fish whether contained in a sack bag box hamper or basket or not—		
	Where such quantity does not exceed in weight twenty pounds avoirdupois ... for every day	0	3
	Where such quantity exceeds in weight twenty pounds avoirdupois—		
	For the first twenty pounds ... for every day	0	3
	For each additional twenty pounds or fraction of twenty pounds ... for every day	0	1½
	For any quantity of an article of garden produce (including fruit but excluding potatoes and other vegetables) whether contained in a sack bag box hamper or basket or not—		
	Where such quantity does not exceed in weight twenty pounds avoirdupois ... for every day	0	2
	Where such quantity exceeds in weight twenty pounds avoirdupois—		
	For the first twenty pounds ... for every day	0	2
	For each additional twenty pounds or fraction of twenty pounds ... for every day	0	1
	For any quantity of potatoes or other vegetables whether contained in a sack bag box hamper or basket or not—		
	Where such quantity does not exceed in weight one hundred and twelve pounds avoirdupois for every day	0	4
	Where such quantity exceeds in weight one hundred and twelve pounds avoirdupois—		
	For the first one hundred and twelve pounds for every day	0	4
	For each additional one hundred and twelve pounds or fraction of one hundred and twelve pounds ... for every day	0	4

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

General Tolls.

s. d. A.D. 1921.

For every basket hamper parcel or quantity of any other goods commodity article or thing exposed or offered for sale there not before specifically charged or enumerated or falling within any of the preceding heads (that is to say)—

*Llandudno
Order.*

Not containing more than one bushel	...	...	0	2
Every additional half-bushel	...	...	0	1

SCHEDULE C.

Slaughter-houses.

For every bull ox cow bullock steer or heifer	...	...	2	6
For every calf	...	...	1	0
For every sheep or lamb	...	...	0	6
For every hog or pig	...	...	1	0
For every other beast	...	...	1	0

SCHEDULE D.

Weighing and Measuring.

For weighing every piece of meat or thing weighing more than twenty-eight pounds avoirdupois	...	...	0	1
For weighing every piece of meat or thing weighing more than twenty-eight pounds and not exceeding one hundred and twelve pounds	...	...	0	2

And so in proportion for any greater or smaller quantity than one hundred and twelve pounds weight over and above one hundred and twelve pounds weight.

For measuring every quantity of goods and thing sold by measure not exceeding one bushel	...	...	0	0½
For measuring every quantity more than a bushel and not exceeding two bushels	...	...	0	1
And for every bushel beyond two bushels	...	...	0	0½

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

SCHEDULE E.

Llandudno
Order.

Weighing Machines. s. d.

For weighing any cart waggon or other carriage not
 exceeding one ton 1 0
 And so in proportion for any greater or smaller
 weight than one ton.

Given under the Official Seal of the Minister of Health
 this Seventh day of May One thousand nine hundred
 and twenty-one.

(L.S.)

A. B. MACLAHLAN
 Assistant Secretary Ministry of Health.

URBAN DISTRICT OF MELTON MOWBRAY.

Melton
Mowbray
Order.

Provisional Order for altering the Melton Mowbray
Cattle Market &c. Act 1869 and a
Confirming Act.

WHEREAS the Urban District Council of Melton Mowbray
 (hereinafter referred to as "the Council") are the successors of
 the Local Board of Melton Mowbray and the local authority
 within the meaning of the Public Health Act 1875 for the
 Urban District of Melton Mowbray (hereinafter referred to as
 "the District");

32 & 33 Vict.
 c. xxvii.

And whereas there are in force in the District the
 unrepealed provisions of the Melton Mowbray Cattle Market &c.
 Act 1869 (hereinafter referred to as "the Local Act") as altered
 by the Melton Mowbray Order 1907 (hereinafter referred to as
 "the Order of 1907") which was confirmed by the Local
 Government Board's Provisional Orders Confirmation (No. 11)
 Act 1907 (hereinafter referred to as "the Confirming Act of
 1907");

And whereas by Section 5 of the Local Act the Local
 Board were empowered to provide and maintain a place
 including buildings conveniences erections and fixtures for
 markets and fairs (hereinafter referred to as "the cattle
 market");

And whereas by virtue of Section 16 of the Local Act the
 Council are entitled to demand and receive tolls and rents not
 exceeding (except with the approval of one of His Majesty's
 Principal Secretaries of State) those specified in the first
 schedule to that Act from persons selling or exposing or offering

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

for sale exhibition or hire or for breeding or other purposes respectively cattle horses hay wood or implements in the cattle market or frequenting or attending with any such things for any such purposes any market or fair held in the cattle market ;

A.D. 1921.

*Melton
Mowbray
Order.*

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter the Local Act and the Confirming Act of 1907 in manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act of 1907 so far as it relates to the Order of 1907 shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

1. Notwithstanding anything contained in the Local Act the Council may demand and receive in respect of the use of the cattle market and any goods animals and things sold or exposed or offered therein for sale exhibition or hire or for breeding or other purposes respectively such tolls stallages and rents as the Minister of Health may sanction.

Minister of
Health to
prescribe
tolls for
market.

2. From and after the date on which such tolls stallages and rents as sanctioned by the Minister of Health come into operation the following provisions shall take effect namely :—

Alteration
and partial
repeal of
Local Act.

(a) Section 16 and the First Schedule of the Local Act shall be repealed :

(b) The words “ goods animal or thing ” shall be substituted for the words “ cattle horse or thing ” where those words occur in Section 18 of the Local Act :

(c) The expression “ goods animals and things in respect of “ which tolls stallages or rents have been sanctioned “ by the Minister of Health ” shall be substituted for the expressions “ cattle horses hay wood and implements ” and “ cattle horses hay wood or implements ” where they occur in Section 15 of the Local Act :

(d) Section 20 of the Local Act shall be repealed.

3.—(1) The Minister of Health may direct inquiries to be held by the inspectors of the Ministry of Health which he may deem necessary with reference to the purposes of the Local Act as altered by the Order of 1907 and by this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries and
expenses.

[Ch. xcvi.] *Ministry of Health* [11 & 12 Geo. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

*Melton
Mowbray
Order.*

(2) Where the Minister of Health causes any such inquiry to be held the costs incurred by the Minister in relation to that inquiry (including such sum as the Minister may determine for the services of any inspector or officer of the Ministry engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

(3) The Confirming Act of 1907 so far as it relates to Article 14 of the Order of 1907 shall be repealed.

Short title.

4. This Order may be cited as the Melton Mowbray Order 1921.

Given under the Official Seal of the Minister of Health
this Seventh day of May One thousand nine hundred
and twenty-one.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

BOROUGH OF MORECAMBE.

*Morecambe
Order.*

*Provisional Order for repealing altering and amending
the Lancaster Local Board of Health Act 1864
and the Lancaster Corporation Act 1918.*

WHEREAS the Borough of Morecambe (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Council") are the Sanitary Authority ;

And whereas there are in force in the Borough certain unrepealed provisions of the Lancaster Local Board of Health Act 1864 (hereinafter referred to as "the Act of 1864") and the Lancaster Corporation Act 1918 (hereinafter referred to as ("the Act of 1918")) ;

And whereas by Section 45 of the Act of 1864 an agreement entered into between the Mayor Aldermen and Burgesses of the Borough of Lancaster and the Local Board of Health for the District of Poulton Bare and Torrisholme (the predecessors in title of the Council) for the supply of water in bulk to the said Board was confirmed and Sections 46 to 49 of the Act of 1864 contain provisions relating to the rates and charges to be made by the Council for the supply of water within the Borough ;

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

And whereas by Section 35 of the Act of 1918 provision was made for the supply of water in bulk by the Corporation of the Borough of Lancaster to the Council and the before mentioned agreement was thereby determined;

A.D. 1921.

Morecumbe
Order.

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to repeal alter or amend the Act of 1864 and the Act of 1918 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that on the Twenty-sixth day of December One thousand nine hundred and twenty-one the Act of 1864 and the Act of 1918 shall be repealed altered and amended so that the following provisions shall take effect that is to say:—

1.—(1) The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house within the Borough entitled to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a yearly rate not exceeding ten per centum upon the rateable value of the premises.

Rates for
supply of
water for
domestic
purposes.

(2) In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the Borough a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

(3) The rateable value of any premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment to be ascertained in case of dispute by a Court of Summary Jurisdiction.

(4) The Minister of Health may from time to time by order vary the rates and charges to be made for a supply of water under subdivisions (1) and (2) of this Article.

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

Morecambe
Order.

(5) The Council shall as soon as practicable after an order is made in pursuance of subdivision (4) of this Article cause the order to be published in two successive weeks in one or more local newspapers circulating in the Borough and the order shall come into operation on and after the quarter day next following the date of the last of the said publications.

Supply to
houses partly
used for
trade &c.

2. The Council shall not be bound to supply with water otherwise than by measure—

(a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or

(b) any workhouse hospital sanatorium club hotel public-house restaurant or inn.

Repeal of
Sections 45 to 49
of Act of 1864.

3. Sections 45 to 49 inclusive of the Act of 1864 shall be repealed.

Inquiries and
expenses.

4.—(1) The Minister of Health may direct any inquiries to be held by the inspectors of the Minister of Health which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Minister in relation to that inquiry (including such reasonable sum as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

Short title.

5. This Order may be cited as the Morecambe Order 1921.

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-one.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

BOROUGH OF SCARBOROUGH.

A.D. 1921.

Provisional Order for partially repealing altering and amending the Scarborough Improvement Act 1889 the Scarborough Corporation Act 1900 and the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1915.

*Scarborough
Order.*

WHEREAS the Borough of Scarborough (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Authority for the purposes of the Public Health Act 1875 ;

And whereas there are in force in the Borough the unrepealed provisions of the Scarborough Improvement Act 1889 and the Scarborough Corporation Act 1900 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed) as altered by the Scarborough Order 1915 (hereinafter referred to as the "Order of 1915") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1915 (hereinafter referred to as "the Confirming Act of 1915") and the Scarborough Order 1919 (hereinafter referred to as "the Order of 1919") and other Provisional Orders which were duly confirmed by Parliament ;

And whereas by Sections 158 160 161 and 162 of the Act of 1889 and Sections 127 to 130 of the Act of 1900 provision was made with regard to the maintenance and management and construction of public parks gardens pleasure grounds recreation grounds and swimming baths by the Corporation and with respect to several matters connected therewith ;

And whereas by an Order made by the Local Government Board and dated the Twelfth day of April One thousand nine hundred and ten (hereinafter referred to as "the Order of 1910") declaring Part VI. of the Public Health Acts Amendment Act 1907 to be in force in the Borough Sections 158 160 161 and 162 of the Act of 1889 were repealed to the extent therein mentioned ;

And whereas by Article I. of the Order of 1915 provision was made with regard to the borrowing of moneys for the purposes of baths provided by the Corporation and by Article II. of the said Order provision was made with regard to inquiries to be held by the Local Government Board for the purposes of that Order and expenses in relation to such inquiries ;

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

Scarborough
Order.

And whereas by Article III. of the Order of 1919 the Corporation were empowered to close a marine drive or carriage road with a promenade for foot passengers and sea wall (in that Order and hereinafter referred to as "the Marine Drive") and to charge for admission thereto;

And whereas by Section 94 of the Act of 1889 certain of the provisions of the Town Police Clauses Act 1847 were made applicable to hackney carriages conveying passengers to or from any railway station within the Borough;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to partially repeal alter or amend the Acts of 1889 and 1900 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Acts of 1889 and 1900 and the Confirming Act of 1915 shall be partially repealed altered or amended so that the following provisions shall take effect namely:—

Repeal of
certain pro-
visions of
Local Acts.

1. Such of the provisions of Sections 158 160 161 and 162 of the Act of 1889 as are not already repealed by the Order of 1910 and Sections 127 to 130 inclusive of the Act of 1900 shall be repealed.

Powers as to
certain parks
&c.

2. Subject as hereinafter provided and to any covenant or conditions in any lease conveyance or agreement in relation to the public parks gardens and pleasure grounds or recreation grounds belonging to them or under their control and known as Falsgrave Park Holbeck Gardens Alexandra Gardens Clarence Gardens Castle Yard Saint Nicholas Gardens Manor Road Recreation Ground Wheatcroft Undercliff Peasholm Pleasure Ground and Undercliff South Cliff Gardens and Mere Pleasure Grounds the Corporation may—

- (a) at any time close and set apart any part or parts thereof and may adapt the same for any purpose of any game recreation contest match or pastime;
- (b) for any such purpose let the same on lease or otherwise to any club or person;
- (c) charge the public for admission thereto at all times or on special days or on the occasion of the playing of any band of music or on any other occasion as the Corporation may think fit; and
- (d) charge for bathing in or boating or skating on any lake mere or other water therein:

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

Provided that parts of the said public parks gardens and pleasure grounds or recreation grounds comprising in the whole not less than fifty acres (which parts shall include some portion contiguous to the Mere and some portion of the cliffs) shall at all times be open to the free use of the public and that not less than ten acres of lake mere or water if and when opportunity offers shall be set apart for purposes of skating and be open to the public free of charge.

A.D. 1921.

Scarborough
Order.

3. The Corporation may provide erect manage maintain and remove or let to any person or may agree with any person for the provision erection management maintenance or removal of any caretakers residences boat-houses conservatories pavilions refreshment rooms and other buildings and conveniences tents boats apparatus and appliances for games and recreation in any public park garden pleasure ground or recreation ground or on any other land for the time being belonging to the Corporation or under their control which may be required or convenient for the purposes of or in connection with such park garden ground or land and for the use of the public resorting thereto or for or in connection with the provision of refreshments at any pavilion or refreshment room tent or other building for the time being belonging to the Corporation or under their control and may charge or authorise any person to charge for admission thereto or in respect of the use thereof as the case may be.

Erection &c.
of buildings
&c.

4.—(1) The Corporation may pay or contribute towards the payment of a band or bands of music on the Marine Drive or in any public park garden pleasure ground or recreation ground for the time being belonging to the Corporation or under their control or in any building erected in or in connection with such parks gardens or grounds or in any other place in the Borough to which the public may resort.

Provision
of bands.

(2) The Corporation may make regulations as to the time and place for the playing of any such band for regulating the payments to be made for admission to the performance of any such band and for securing good and orderly conduct during such playing.

5.—(1) The Corporation may on any part of the seashore or on other land belonging to them or acquired by them for the purpose construct maintain alter extend enlarge improve repair furnish and equip or discontinue sell or dispose of open or covered sea water or fresh water medicated Turkish swimming and other baths with any necessary or convenient mains pipes machinery or apparatus and effects conveniences appliances and gymnasia in connection therewith and when and so soon as the

Power to
provide
baths.

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921. Corporation shall have set apart any part of the seashore for the
—
Scarborough purposes aforesaid all public and other rights of user of the same
Order. shall be extinguished.

(2) The Corporation may in connection with any such baths lay down and provide such sea-water intake pipes apparatus and fittings as may be incidental to or necessary for such purposes.

(3) For the purpose of laying down any intake pipes for supplying sea-water to any baths belonging to them the Corporation may break up streets and alter the position of any culvert pipes and wires under any street Provided that the Corporation shall not alter the position of or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

(4) The Corporation may for such periods as they shall think fit close to the public any baths provided by them under this Article and may reserve the exclusive use thereof for meetings entertainments swimming contests practices or exhibitions of aquatic sports or exercises and may grant the use thereof for such purposes to any company body or person either with or without payment and may charge or may authorise such company body or person to charge such sums for the admission of persons thereto as the Corporation may think fit :

Provided that no swimming bath shall be closed under the powers of this Article for more than six hours in any one day or on more than two days in any one week.

(5) The Corporation may if they think fit let on lease to any company body or person for such term and on such conditions as the Corporation may think fit any baths provided by them under the provisions of this Article and thereby transfer to any such company body or person all or any of the powers and rights conferred on the Corporation by this Article with regard to the provision maintenance and management of baths subject however to the proviso to subdivision (4) hereof.

(6) The Corporation may make and enforce byelaws for the management use and regulation of the baths and gymnasia provided in accordance with the provisions of this Article and for regulating the conduct of persons resorting thereto and for the several purposes mentioned in Schedule A annexed to the Baths and Washhouses Act 1846 in like manner as byelaws under the Baths and Washhouses Acts 1846 to 1882 may be made and enforced and the provisions of those Acts so far as the same are applicable to such baths and are not inconsistent with the provisions of this Article shall extend and apply to such baths but notwithstanding anything in those Acts the Corporation may demand and take or may authorise

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

any company body or person to demand or take for the use of such baths or for the admission of persons thereto such reasonable charges as the Corporation may think fit.

A.D. 1921.

—
*Scarborough
Order.*

(7) In the application of the provisions of the Baths and Washhouses Act 1878 for the purposes of this Article Section 5 thereof shall be read and have effect as if the words "not exceeding five months in any one year" and the words "from the beginning of the month of November to the end of the month of March" were omitted therefrom.

6.—(1) The Corporation may for the purpose of providing any such baths as are referred to in Article 5 of this Order purchase or take on lease or otherwise acquire by agreement the lands buildings and premises known as the Scarborough Aquarium and may for that purpose with the consent of the Minister of Health purchase or take on lease or otherwise acquire by agreement any other lands buildings and premises.

Purchase of
Aquarium.

(2) Nothing in this Article or in Article 5 aforesaid shall authorise the Corporation to create or permit the creation or continuance of any nuisance on such lands.

7.—(1) In order to defray and provide for any expenses attendant upon or occasioned by storm accident or other unforeseen cause in relation to the Marine Drive or to any public park garden pleasure ground or recreation ground or the buildings thereon or to any other undertaking (other than the water undertaking) or property for the time being belonging to the Corporation and in order to provide for the maintenance thereof in effective condition and repair the Corporation may appropriate and set apart annually in respect of any such undertaking or property such sums as the Corporation may determine not exceeding in any one year two per centum of the aggregate amount at all times expended by them for capital purposes on that undertaking or property.

Insurance
and Depre-
ciation Fund.

(2) The sums so determined by the Corporation to be appropriated and set apart in each year shall be paid out of the district fund and carried to the credit of a fund to be called "the Insurance and Depreciation Fund."

(3) The Insurance and Depreciation Fund shall not without the consent of the Minister of Health at any time exceed in the aggregate one-fifth of the aggregate amount of capital expended by the Corporation upon the undertakings and property to which the fund applies.

(4) All sums paid into the Insurance and Depreciation Fund shall be invested by the Corporation in statutory securities within the meaning of Section 207 of the Act of 1889.

(5) All interest and dividends accruing in respect of the sums standing to the credit of the Insurance and Depreciation

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Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921. Fund so long as that fund has not reached the prescribed maximum shall be carried to the credit of that fund and when the prescribed maximum has been reached and so long as the said fund does not fall below such maximum any such interest or dividends shall be carried to the credit of the district fund of the Borough.

—
*Scarborough
Order.*

Amendment
of Local
Act as to
hackney
carriages.

8. In Section 94 of the Act of 1889 the words "and with respect to the licensing of such drivers" shall be inserted after the words "within the borough" where those words first occur in the Section and the words "as if the driver of any such last-mentioned hackney carriage were a driver of a hackney carriage licensed in pursuance of the Town Police Clauses Act 1847 as extended by this Act to ply for hire within the prescribed distance and" shall be inserted after the words "within the Borough" where those words last occur in the Section.

Application
of revenue
&c.

9. Any expenses incurred by the Corporation in the exercise of the powers given to them by this Order shall be paid out of the district fund and general district rate of the Borough and all moneys received by the Corporation in the exercise of those powers shall be carried to the credit of the said district fund :

Provided always that the net amount of any payments or contributions by the Corporation for the purposes of Article 4 of this Order after deducting any moneys received by them in respect of the said purposes shall not in any one year exceed the sum produced by a rate of one penny in the pound on the rateable value for the time being of the Borough for the purposes of the general district rate.

Power to
borrow.

10.—(1) In addition to the moneys already authorised to be borrowed for any of the purposes of this Order the Corporation may with the sanction of the Minister of Health borrow such further moneys as may from time to time be required for those purposes.

(2) The provisions of the Act of 1900 with respect to the borrowing re-borrowing and repayment of moneys shall so far as they are applicable and subject to the provisions of this Order extend and apply to and in respect of any moneys borrowed by the Corporation in pursuance of the provisions of this Order.

(3) For the repayment of all moneys borrowed in pursuance of this Order and for the payment of interest thereon the district fund and general district rate of the Borough are hereby primarily made chargeable and the provisions of the Act of 1900 shall apply and have effect accordingly.

(4) Any moneys borrowed by the Corporation for the purposes of this Order shall be repaid within such period not

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi] *Provisional Orders Confirmation (No. 8) Act, 1921.*

exceeding sixty years from the respective dates of borrowing the same as the Corporation shall with the sanction of the Minister of Health determine and the period so determined and sanctioned shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Act of 1900 as applied by and to the provisions of this Article.

A.D. 1921.
—
Scarborough
Order.

11.—(1) The Confirming Act of 1915 so far as it relates to Article II. of the Order of 1915 is hereby repealed.

Inquiries and
expenses.

(2) The Minister of Health may direct any inquiries to be held by the inspectors of the Ministry of Health which he may deem necessary with reference to the purposes of the Order of 1915 or of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(3) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order the cost incurred by the Minister in relation to that inquiry (including such reasonable sum as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

12.—(1) The Corporation shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the Secretaries or Assistant Secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this subsection the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Works below
high-water
mark not to
be con-
structed
without
consent of
Board of
Trade.

(2) Nothing in this Order shall prejudicially affect any estate right power privilege or exemption of the Crown and

Protection of
Crown rights.

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A.D. 1921. in particular nothing herein contained shall authorise the
—
Scarborough Corporation to take use or in any manner interfere with any
Order. portion of the shore or bed of the sea or of any river channel
creek bay or estuary or any lands hereditaments subjects or
rights of whatsoever description belonging to His Majesty in
right of His Crown without the consent in writing of the Board
of Trade or of the Commissioners of His Majesty's Woods and
Forests in the case of tidal or other lands under their manage-
ment first had and obtained for that purpose.

Short title. 13. This Order may be cited as the Scarborough Order
1921.

Given under the Official Seal of the Minister of Health
this Twelfth day of May One thousand nine hundred
and twenty-one.

(L.S.)

A. B. MACLAHLAN
Assistant Secretary Ministry of Health.

BOROUGH OF SOUTHPORT.

Southport *Provisional Order for partially repealing altering and*
Order. *amending certain Local Acts.*

WHEREAS the Borough of Southport (hereinafter referred to
as "the Borough") is an Urban Sanitary District of which the
Mayor Aldermen and Burgesses acting by the Council (herein-
after referred to as "the Corporation") are the Urban Sanitary
Authority and there are in force in the Borough the unrepealed
provisions of the Southport Improvement Act 1865 (hereinafter
referred to as "the Act of 1865") the Southport Improvement
Act 1871 (hereinafter referred to as "the Act of 1871") the
Southport Extension and Tramways Act 1900 (hereinafter
referred to as "the Tramways Act of 1900") the Southport
Corporation Act 1900 (hereinafter referred to as "the Corpora-
tion Act of 1900") and the Southport Corporation Act 1913
(hereinafter referred to as "the Act of 1913") and certain
other Local Acts and Provisional Orders duly confirmed by
Parliament;

And whereas by the Acts of 1865 and 1871 the Corporation
are authorised to carry on a market undertaking and a slaughter-
house undertaking and to charge in connection therewith the
tolls stallages rates rents and sums of money specified in
Schedules (D) and (E) to the Act of 1871;

And whereas by the Acts of 1865 and 1871 and by other
Local Acts and Provisional Orders duly confirmed by Parliament

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the Corporation were empowered to borrow certain moneys for the purposes of their market and slaughter-house undertakings ;

A.D. 1921.

*Southport
Order.*

And whereas Section 48 of the Tramways Act of 1900 authorises the Corporation to provide omnibuses in connection with the Corporation tramways along the routes of intended tramways during construction or during the reconstruction of any of the Corporation tramways ;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Act of 1871 the Tramways Act of 1900 the Corporation Act of 1900 and the Act of 1913 in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the said Acts shall be altered so that the following provisions shall take effect that is to say :—

1.—(1) Notwithstanding anything contained in the Act of 1871 the Corporation may demand and receive—

Increased charges in markets and slaughter-houses.

(a) in respect of their market undertaking any tolls stallages rates rents or sums of money not exceeding by more than fifty per centum the several tolls stallages rates rents or sums of money set forth in Schedule (D) to the Act of 1871 ; and

(b) in respect of their slaughter-house undertaking any tolls not exceeding by more than one hundred per centum the sums set forth in Schedule (E) to the Act of 1871.

(2) The Corporation shall have power with the sanction of the Minister of Health to alter from time to time any tolls stallages rates rents or sums of money mentioned in Schedules (D) and (E) to the Act of 1871 and any such altered tolls stallages rates rents or sums of money as sanctioned by the Minister of Health shall as from the date on which they come into operation be substituted for the corresponding tolls stallages rates rents or sums of money mentioned in the said Schedules as increased by this Order.

2.—(1) The Corporation may with the sanction of the Minister of Health borrow on the security of the revenue arising from their market and slaughter-house undertakings and the borough fund and the borough rate or upon either of such securities such further sums as may from time to time be necessary for the purposes of their market and slaughter-house undertakings.

Power to borrow for markets and slaughter-houses.

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

*Southport
Order.*

Period for
repayment of
borrowed
moneys.

(2) The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Minister of Health in each case determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Local Loans Act 1875 and of Section 130 of the Corporation Act of 1900 as applied by this Order.

Application
of provisions
of Act of
1900 to bor-
rowing under
and purposes
of this Order.

(3) Subject as hereinafter provided the provisions of Sections 123 to 125 129 to 133 135 and 137 of the Corporation Act of 1900 shall apply as if those provisions were herein re-enacted and in terms made applicable to the moneys borrowed under this Order and otherwise to the purposes of this Order:

Provided that in the application of the provisions of Section 130 of the Corporation Act of 1900 as aforesaid those provisions shall have effect as if the words "three and a half" per centum per annum or at such other rate as the Minister of Health may from time to time approve" were inserted in paragraph (b) of subsection (1) of that Section instead of the words "three per centum per annum."

Power to run
omnibuses.

3. For Section 48 of the Tramways Act of 1900 the following provisions shall be substituted:—

"48.—(1) (a) Subject to the provisions of this Act the Corporation may provide or maintain (but shall not manufacture) and may run omnibuses within the Borough.

"(b) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds.

"(c) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

"(d) The Corporation shall perform in respect of the omnibuses provided under this Section such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

"(e) The provisions of Section 51 (Penalty on passengers practising frauds on the promoters) and Section 56 (Recovery of tolls penalties &c.) of the Tramways Act.

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1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways. A.D. 1921.
Southport Order.

“(f) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon the omnibuses provided by them or in upon or against any premises used in connection therewith Provided that any such byelaws shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws.

“(g) The Corporation shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

“(2) The purposes of subsection (1) of this Section shall be deemed to be purposes of the tramway undertaking of the Corporation under subsection (2) of Section 97 of the Act of 1913. Power to borrow.

“(3) (a) Subject to the provisions of this subsection the Corporation may demand and take for passengers and parcels carried on the omnibuses fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport. Fares and charges.

“(b) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

“(c) The Corporation may if they think fit carry on the omnibuses small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals.

“(d) The fares and charges authorised by this Act shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares and charges appoint.”

4.—(1) The Minister of Health may direct any inquiries to be held by the inspectors of the Minister which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875. Inquiries and expenses.

(2) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order

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Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

—
*Southport
Order.*

the costs incurred by the Minister in relation to that inquiry (including such reasonable sum as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Provisions as
to adaptation
of roads.

5.—(1) (a) Before the Corporation commence to run omnibuses over any road or part of a road maintainable by a railway company it shall be determined by agreement between the Corporation and the railway company or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Order of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road and if so what sum of money (if any) per mile of road so to be adapted altered or reconstructed shall be payable by the Corporation to the railway company by way of contribution towards the cost incurred in such adaptation alteration or reconstruction.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subdivision have been so agreed or determined the Corporation shall give notice in writing to the railway company as to whether they intend to run omnibuses over the road or part of a road in question.

(c) If the Corporation give notice in writing to the railway company that they intend to run omnibuses over the road or part of a road in question and if it shall have been agreed or determined that the Corporation are to make any payment to the railway company under the provisions of paragraph (a) of this subdivision the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road pay to the railway company such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the railway company on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subdivision the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road which is not executed within three years from the date on which the

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
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Corporation shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed. A.D. 1921.

(e) Except as provided by paragraph (c) of this subdivision not more than one payment or (in the case of a payment by instalments) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed.

*Southport
Order.*

(2) If any such adaptation alteration or reconstruction as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the railway company shall be deemed to be "undertakers" within the meaning of the said Act.

6. Nothing contained in this Order shall impose any obligation on or enlarge any obligation of any railway company to strengthen adapt alter or reconstruct any bridge maintainable by them. As to bridges of railway companies.

7. This Order may be cited as the Southport Order 1921. Short title.

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-one.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

BOROUGH OF WIDNES.

*Provisional Order for altering the Widnes and Runcorn
Bridge Act 1900 and the Widnes and Runcorn
Bridge (Transfer) Act 1911.*

*Widnes
Order.*

WHEREAS the Borough of Widnes is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") and there are in force in the said Borough the unrepealed provisions of the Widnes and Runcorn Bridge Act 1900 (hereinafter referred to as "the Act of 1900") and the Widnes and Runcorn Bridge (Transfer) Act 1911 (hereinafter referred to as "the Act of 1911") under which the Corporation carry on a bridge undertaking;

And whereas in pursuance of Section 50 of the Act of 1900 the Corporation are empowered to demand and take the tolls and charges set out in the Schedule to that Act for and in respect of the use of the transporter bridge authorised by that Act and the conveyance of traffic by means thereof;

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Provisional Orders Confirmation (No. 8) Act, 1921.

A.D. 1921.

*Widnes
Order.*

And whereas by Section 13 of the Act of 1911 the Corporation are empowered to apply the revenue of the bridge undertaking after making certain payments and providing for certain matters as therein mentioned in providing a reserve fund and it is provided that the maximum reserve fund which the Corporation may prescribe in respect of their bridge undertaking shall not exceed the sum of five thousand pounds;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1900 and the Act of 1911 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the said Acts shall be altered so that the following provisions shall take effect that is to say:—

Increase of
passenger
toll.

1. The Schedule to the Act of 1900 shall be altered by the substitution therein opposite the item "Passenger" of "1½d." for "1d." and Section 50 of the Act of 1900 shall have effect accordingly.

Increase of
maximum
of reserve
fund.

2. The paragraph numbered "Fifthly" in subsection (1) of Section 13 of the Act of 1911 shall be altered by the substitution for the words "five thousand pounds" of the words "ten thousand pounds."

Short title.

3. This Order may be cited as the Widnes Order 1921.

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-one.

(L.S.)

H. W. S. FRANCIS

Assistant Secretary Ministry of Health.

SHOREHAM AND LANCING SEA
DEFENCE DISTRICT.

*Shoreham
and Lancing
Order.*

*Provisional Order for partially repealing and altering
a Local Act and certain Confirming Acts.*

WHEREAS there are in force within limits defined as hereinafter mentioned the unrepealed provisions of a Local Act passed in the seventh year of the reign of His late Majesty King George the Fourth intituled "An Act for making and maintaining a
" turnpike road from Worthing to Lancing in the County of
" Sussex and groynes embankments and other sea defences for
" protecting such road and the lands adjoining from the future
" encroachments of the sea" (hereinafter referred to as "the

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

Local Act") as altered by a Provisional Order of the Secretary of State dated the Eighth day of April One thousand eight hundred and sixty-nine and confirmed by the Local Government Supplemental Act 1869 by a Provisional Order of the Local Government Board dated the Nineteenth day of June One thousand eight hundred and seventy-six and confirmed by the Local Government Board's Provisional Orders Confirmation (Bath &c.) Act 1876 by a Provisional Order of the Local Government Board dated the Fifth day of June One thousand eight hundred and ninety-one and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1891 and by a Provisional Order of the Local Government Board dated the Twenty-eighth day of May One thousand nine hundred and thirteen and confirmed by the Local Government Board's Provisional Order Confirmation (No. 15) Act 1913 which Provisional Orders and Confirming Acts are hereinafter referred to as "the Orders" and "the Confirming Acts" respectively and each of which Provisional Orders is hereinafter referred to as the Order of the year in which it was made and each of which Confirming Acts is hereinafter referred to as the Confirming Act of the year in which it was passed ;

A.D. 1921.

—
*Shoreham
and Lancing
Order.*

And whereas by the Local Act certain trustees were authorised to construct and maintain sea defences for the protection of certain lands in Worthing and Lancing and for the purpose of defraying their expenses were authorised to levy rates upon certain lands mentioned therein ;

And whereas by the Order of 1869 it was provided that the powers of the said trustees should cease and that all their powers which would not be affected by that Order should vest in and be exercised by the Worthing Local Board of Health ;

And whereas by the same Order as altered by the Order of 1876 the limits of the district of the Local Board for such of the purposes of the Local Act and the said Orders as related to sea defences were defined and certain additional powers of levying rates were conferred upon the Local Board ;

And whereas by the Order of 1891 the provisions defining the said limits were altered so as to provide that so far as might be necessary for the said purposes the Mayor Aldermen and Burgesses of the Borough of Worthing acting by the Council (being the successors of the Local Board and hereinafter referred to as "the Corporation") should have and exercise the powers of an Urban Sanitary Authority over certain lands in the Parish of Lancing in the Administrative County of West Sussex and provision was also made for the constitution of a committee to exercise certain powers and perform certain duties in relation to a portion of the lands above mentioned and further provision was made with regard to the levying of rates upon the said lands ;

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A.D. 1921.

—
*Shoreham
and Lancing
Order.*

And whereas by the Order of 1913 Commissioners were constituted for the purpose of making and maintaining sea defence works in the Parishes of Shoreham and Lancing in continuation eastward of the sea defence works of the Corporation and the Commissioners were empowered to levy rates upon certain lands specified in the said Order and provision was also made for contributions being made towards their expenses by certain local authorities ;

And whereas it appears desirable that the Corporation should cease to exercise any powers as to sea defences within the Parish of Lancing and that the Commissioners should exercise and have powers and duties in respect of the construction and maintenance of sea defence works up to the boundary of the Borough and that certain other provisions of the Local Act and Orders and Confirming Acts should be altered ;

And whereas the Corporation and the Commissioners have accordingly made application to the Minister of Health to repeal alter or amend the Local Act the Orders and the Confirming Acts in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act the Orders and the Confirming Acts shall be partially repealed and altered so that the following provisions shall take effect that is to say :

Definitions.

1. In this Order unless the context otherwise requires—

“ The appointed day ” means the date of the Act of Parliament confirming this Order ;

“ The Minister ” means the Minister of Health ;

“ The Commissioners ” means the Commissioners constituted by the Order of 1913 and hitherto styled the East Lancing Sea Defence Commissioners but henceforth to be styled in pursuance of this Order the Shoreham and Lancing Sea Defence Commissioners ;

“ The County Council ” means the County Council of the Administrative County of West Sussex ;

“ The Borough ” and “ the Corporation ” mean respectively the Borough of Worthing and the Mayor Aldermen and Burgesses thereof acting by the Council ;

“ The Urban Council ” means the Urban District Council of Shoreham-by-Sea ;

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"The Rural Council" means the Rural District Council of Steyning West ; A.D. 1921.

"The Maps" means the maps referred to in Article I. of the Order of 1913 ; *Shoreham and Lancing Order.*

"The Sea Defence District" means the East Lancing Sea Defence District as defined in Article I. of the Order of 1913 which in pursuance of this Order is henceforth to be styled the Shoreham and Lancing Sea Defence District ;

"The Sea Defence Fund" and "the Sea Defence Rates" mean respectively the fund and rates referred to in Articles XVII. and XVIII. of the Order of 1913.

2. This Order shall come into operation upon the appointed day. Date of operation.

3. The East Lancing Sea Defence Commissioners the East Lancing Sea Defence District the East Lancing Sea Defence Fund the East Lancing Sea Defence Fund Account and the East Lancing Sea Defence rates shall henceforth be known respectively as the Shoreham and Lancing Sea Defence Commissioners the Shoreham and Lancing Sea Defence District the Shoreham and Lancing Sea Defence Fund the Shoreham and Lancing Sea Defence Fund Account and the Shoreham and Lancing Sea Defence rates and references in the Order of 1913 shall be construed accordingly but such change of name shall in no way affect the Commissioners as a corporate body. Change of name.

4.—(1) For subdivision (2) of Article IV. of the Order of 1913 there shall be substituted the following :— Change in constitution of Commissioners.

"(2) The number of the Commissioners shall be eighteen and of that number—

Four shall be elected by the owners of property ;

Nine shall be appointed by the County Council ;

Three shall be appointed by the Urban Council ; and

Two shall be appointed by the Rural Council."

(2) At all meetings of the Commissioners four Commissioners shall constitute a quorum and subdivision (4) of Article X. of the Order of 1913 shall be amended accordingly. Quorum.

(3) Upon the appointed day the Commissioner then holding office as the representative of the Corporation shall go out of office and no further appointment shall be made by the Corporation. Representation of Corporation to cease.

(4) The Commissioners holding office upon the appointed day as representatives of the owners of property and of the County Council shall continue in office as if this Order had not been made and the Urban Council the Rural Council and the Appointment of additional Commissioners.

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Provisional Orders Confirmation (No. 8) Act, 1921.

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—
*Shoreham
and Lancing
Order.*

County Council shall at their next meetings for which due notices can be given proceed to appoint the requisite number of Commissioners or (as the case may be) of additional Commissioners who shall hold office until the First day of August in the year One thousand nine hundred and twenty-two provided that any vacancy due to failure to appoint at any such next meeting shall be deemed to be a casual vacancy and may be filled up accordingly.

Appoint-
ments by
Rural
Council.

5. The Rural Council shall not appoint as Commissioner any person who is not a Rural District Councillor representing the Parish of Lancing so long as there is any such Councillor not being already a Commissioner who is willing to accept office as such and is not disqualified.

Disqualifica-
tion.

6. For sub-paragraph (a) of Article VI. of the Order of 1913 there shall be substituted the following:—

“(a) In the case of a Commissioner appointed by the Urban Council or by the Rural Council if he is not or ceases to be a member of the appointing Council.”

Transfer of
duties of
Corporation.

7. All powers duties liabilities and obligations which under the Local Act the Orders and the Confirming Acts are vested in or attach to the Corporation in respect of the construction reconstruction and maintenance of sea defence works within the Parish of Lancing and all sea defence works of the Corporation in that parish and all other property and liabilities which are vested in or attach to the Corporation in connection with the performance of their duties in that parish shall by virtue of this Order be transferred to and vest in and attach to the Commissioners provided that—

(a) nothing in this Order contained shall empower the Commissioners to levy any rate within any area other than the Sea Defence District; and

(b) nothing in this Order contained shall affect the powers of the Corporation under the said Acts and Orders in respect of the area of the Borough or save as regards sea defences in the Parish of Lancing their powers under the said Acts and Orders in respect of the Parishes of Lancing and Sompting and the Hamlet of Cokeham and in particular nothing in this Order contained shall affect the powers conferred upon them by the Local Act as amended by the Orders of 1869 and 1876 to assess raise and levy upon the owners of the lands set forth in Schedule B to the Local Act a rate of ten shillings for every acre of the said lands and so in proportion for any less quantity in addition to all other rates to which the said lands are liable.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 8) Act, 1921.

8. The Committee appointed under the provisions of the Order of 1891 shall on the appointed day be dissolved and all sea defence works and other property and liabilities which immediately before that date are vested in or attach to the Committee shall by virtue of this Order be transferred to and vest in or attach to the Commissioners.

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Dissolution of
 Sea Defence
 Committee.

9. The purposes for which the Commissioners were constituted as defined in Article XIII. (a) of the Order of 1913 shall be extended so as to include the construction reconstruction restoration repair and maintenance of defences against encroachment by the sea on so much of the seashore beach and foreshore as extends from the point marked C on the maps to the eastern boundary of the Borough and any defences which may be necessary to prevent the sea from breaking through overflowing or percolating on to or through so much of the main road from Brighton to Worthing as lies between the Sea Defence District and the Borough and such extended purposes shall be deemed to be purposes of the Order of 1913.

Extension
 of Commis-
 sioners' juris-
 diction.

10.—(1) For the purposes of the works which they are by the Order of 1913 as extended by this Order empowered to execute the Commissioners may subject to the provisions of Article XX. of this Order enter upon take and use any part of the seashore beach or foreshore between the point marked C on the maps and the eastern boundary of the Borough and any land which is situated on the south side of the length of main road mentioned in the preceding Article and which is subject to the flow and reflow of the tide thereover or unoccupied or covered with shingle or sand.

Use of beach
 &c.

(2) Section 19 of the Local Act shall continue to apply within the same limits as heretofore but subject to the provisions of that section Article XXVIII. of the Order of 1913 shall apply to the exercise by the Commissioners of their powers under this Order.

Compensa-
 tion.

11. Article XXIII. of the Order of 1913 shall be amended so as to apply also to the part of the seashore beach or foreshore extending from the point marked C on the maps to the eastern boundary of the Borough as it now applies to the part extending from the point marked C to the point marked E on the maps.

Prohibition
 of removal
 of shingle.

12.—(1) No person shall construct any building fence or work or do any thing on the seashore beach or foreshore or any land adjoining the same within the area which lies to the south of the main road from Worthing to Brighton to the east of the eastern boundary of the Borough of Worthing to the south or west of the River Adur and to the west of an imaginary straight

Prohibition
 of unautho-
 rised works.

[Ch. xcvi.] *Ministry of Health* [11 & 12 Geo. 5.]
Provisional Orders Confirmation (No. 8) Act, 1921.

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line drawn north and south through the point marked E on the maps if such building fence work or thing will either—

- (a) injure interfere with or diminish the utility of the sea defence works now or hereafter belonging to the Commissioners or interfere with the maintenance or improvement thereof; or
- (b) prevent or interfere with the construction maintenance or improvement of any sea defence works proposed hereafter to be constructed by the Commissioners; or
- (c) prevent the Commissioners from obtaining reasonable access to the seashore beach and foreshore for the purpose of constructing improving or maintaining sea defence works.

(2) In the event of any dispute arising as to whether the construction of any building fence or work or the doing of any thing contravenes the provisions of this Article such dispute shall be settled by arbitration by a single arbitrator to be agreed upon by the parties to the dispute or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

(3) Nothing in this Article shall prejudice or affect the exercise by the County Council of any right power or duty now or hereafter vested in them as the main road authority or as proprietors of the Norfolk Bridge.

*Amendment
of rating
provisions.*

13. For sub-paragraph (c) of division (2) of Article XVIII. of the Order of 1913 there shall be substituted the following—

“(c) In every such rate the amount in each pound of rateable value assessed upon property liable under this Article to a maximum rate of three shillings and fourpence in the pound shall be one-third of that assessed upon property liable to a maximum rate of ten shillings in the pound.”

*Charge in
respect of
unpaid rates.*

14.—(1) When any rate made and assessed by the Commissioners after the appointed day upon any premises within the Sea Defence District or any instalment thereof or any part of such rate or instalment shall have remained unpaid for six months from the date of a demand for such rate or instalment the said premises and all estates and interests from time to time therein shall become and remain charged with the sum remaining unpaid together with interest thereon from the expiration of such six months at the rate of six pounds per centum per annum or such other rate as the Minister may from time to time by order direct and the Commissioners shall for the recovery of such sum and interest have all the same powers and remedies under the Conveyancing and Law of Property Act 1881 and otherwise as if they were mortgagees having powers of sale and lease and of appointing a receiver.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
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(2) The Commissioners shall keep a register of charges under this Article and of the payments made in satisfaction thereof and the register shall be open to inspection by all persons at all reasonable times on payment of a fee not exceeding one shilling in respect of each name or property searched for and the Commissioners shall furnish copies of any part of such register to any person applying for the same on payment of such reasonable sum as may be fixed by them.

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Order.*

15. For Article XX. of the Order of 1913 there shall be substituted the following:—

Contribu-
tions by local
authorities.

“(1) The County Council the Urban Council and the Rural Council may and as hereinafter provided shall and any local or other authority may from time to time contribute towards the cost of any works which may be executed by the Commissioners in the performance of their duties or towards the repayment of any moneys payable by the Commissioners in respect of moneys borrowed by them for the purposes of their duties.

“(2) The County Council shall in each year contribute a sum equal to that received by the Commissioners from Sea Defence Rates.

“(3) If in any year the Urban Council and the Rural Council shall be required to contribute under subdivision (4) hereof the County Council shall contribute a further sum equal to the total of the sums so contributed by the Urban Council and the Rural Council.

“(4) If in any year in respect of which the Commissioners have resolved to make and levy Sea Defence Rates up to the full extent of their powers their estimated receipts (including the contribution of the County Council under subdivision (2) of this Article) shall be insufficient to meet their estimated expenses and liabilities (including any sum intended to be set apart to the Contingency Fund authorised by this Order) the Urban Council and the Rural Council shall upon receipt of a precept from the Commissioners contribute the following sums:—

“(a) In the case of the Urban Council the sum which would be produced by a general district rate levied throughout their district at such an amount in the pound not exceeding one shilling as may be specified by the Commissioners in such precept; and

“(b) In the case of the Rural Council the sum which would be produced by a rate for special expenses levied throughout the parish of Lancing in accordance with Section 230 of the Public Health Act 1875 at the same amount in the pound as shall have been specified

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by the Commissioners in the case of the Urban District.

“(5)—(a) The amount of any contribution which the Rural Council may be required to make under subdivision (4) hereof shall be defrayed as special expenses within the meaning of the Public Health Act 1875 and chargeable upon the Parish of Lancing.

“(b) Subject as above mentioned the amount of any contribution made voluntarily or compulsorily by a local authority shall be defrayed—

In the case of the County Council as expenses incurred for general county purposes;

In the case of the Urban Council or any other urban authority as general expenses incurred for the purposes of the Public Health Act 1875; and

In the case of the Rural Council or any other rural authority as part of their general expenses under that Act.

“(6) Any sum which in pursuance of this Article the Urban Council or the Rural Council are by precept from the Commissioners required to pay shall be a debt due from the Council to the Commissioners and may be recovered as such in any court of competent jurisdiction together with interest at the rate of five pounds per centum per annum calculated from the expiration of three months from the service of such precept.”

Extension of
borrowing
powers.

16. The security upon which the Commissioners may borrow under the provisions of Article XIX. of the Order of 1913 shall be extended so as to include the contributions which the County Council the Urban Council and the Rural Council are or can be required to make under the provisions substituted by Article 15 of this Order for Article XX. of the Order of 1913.

Contingency
fund.

17.—(1) The Commissioners may in any year set apart out of moneys received by them such sum as they think fit for the purpose of forming and maintaining a contingency fund (which shall not at any one time exceed the sum of three thousand pounds) to meet any deficiency of receipts or any extraordinary claim or demand or any unforeseen accident or extraordinary damage to their works.

(2) Every sum so set apart as aforesaid shall be invested in some security in which trustees are for the time being empowered by law to invest trust moneys and the interest thereon shall be accumulated until the fund reaches a total sum of three thousand pounds or is required for any of the purposes

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above mentioned and so soon and as often as the fund reaches the total sum of three thousand pounds such interest shall be treated in the same way as other receipts of the Commissioners.

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18. Notwithstanding anything contained in the Order of 1913 or this Order or any other Act or Order relating to the Commissioners the following provisions shall apply and have effect:—

As to works
&c. in New
Shoreham
Harbour.

(1) The Commissioners before executing any works within the limits of the New Shoreham Harbour or affecting the said harbour or the navigation or any property rights and interests of the Shoreham Harbour Trustees (hereinafter called "the Trustees") shall submit a detailed description of such works to the Trustees and permit them to inspect should they so desire the plans and sections of such works and the Commissioners shall comply in all respects with the reasonable requirements of the Trustees. Provided always that if the Trustees do not submit their requirements to the Commissioners within thirty-five days after the receipt of the said detailed description the Trustees shall be deemed to have approved thereof. Any question or difference which may arise between the Commissioners and the Trustees under this paragraph shall be settled by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and the Arbitration Act 1889 shall apply to any such arbitration:

(2) Nothing in the said Orders or Acts shall enable the Commissioners to prohibit the Trustees from removing any shingle sand gravel flints or marl within the limits of New Shoreham Harbour from so much of the Shoreham and Lancing Sea Defence District as lies east of a line shown in red ink upon the quadruplicate plans signed on behalf of the Commissioners and of the Trustees by their respective engineers of which one copy is deposited with the Minister another with the Commissioners another with the Clerk of the Peace for West Sussex and the fourth with the Trustees.

19.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Local Government Act 1888 shall apply to all persons who immediately before the appointed day hold office as officers or servants of the Committee dissolved by Article 8 hereof with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Commissioners.

Compen-
sation to
officers.

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
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(2) Every officer or servant of the Committee who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of salary and for whose compensation no other provision is made by any enactment for the time being in force applicable to his case shall be entitled to have compensation paid to him by the Commissioners out of the Sea Defence Fund for that pecuniary loss.

(3) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Article regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Local Government Act 1888 and the compensation shall not exceed the limit therein mentioned and the provisions of subsections (2) to (7) of that Section shall apply with the necessary modifications.

(4) The non-acceptance of any office or employment shall not be a bar to the right of any officer or servant to compensation.

(5) For the purposes of subdivision (2) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Commissioners within five years from the appointed day because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(6) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Crown rights.

20. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Works below
high-water
mark not to

21. The Commissioners shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith

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where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the Secretaries or Assistant Secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Commissioners shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Commissioners and the amount of such costs and charges shall be a debt due from the Commissioners to the Crown and shall be recoverable as a Crown debt or summarily.

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be constructed without consent of Board of Trade.

22. Section 303 (Power to repeal and alter Local Acts) of the Public Health Act 1875 shall extend and apply to and may be put in force by the Commissioners as if they were a local authority within the meaning of that section and the Minister may on the application of the Commissioners make such orders as he is by that section empowered to make on the application of a local authority.

Extension of Public Health Act 1875 s. 303 to Commissioners.

23. All costs charges and expenses preliminary to and of and incident to the obtaining of this Order or otherwise in relation thereto shall be paid by the Commissioners out of the Sea Defence Fund.

Expenses of this Order to be paid by Commissioners.

24. This Order may be cited as the Shoreham and Lancing Sea Defence Order 1921.

Short title.

Given under the Official Seal of the Minister of Health this Eleventh day of May in the year One thousand nine hundred and twenty-one.

(L.S.)

H. W. S. FRANCIS
 Assistant Secretary Ministry of Health.

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